

CASE-090

CASE ID: CASE-090.

ADVOCATE: Adv. Divya Menon (advocate-008).

PRACTICE AREA: property.

JURISDICTION: Maharashtra.

COURT: High Court.

PROCEDURAL STAGE: Judgment.

DECIDED ON: 12/09/2016.

FORUM: HIGH COURT OF MAHARASHTRA.

OUTCOME: The rights of the parties were adjudicated upon and the dispute was resolved on the material placed on record.

MATTER NO.: CASE-090 - property - Maharashtra.

CASE SUMMARY

Matter No. CASE-090 involving a property dispute handled by the advocate in Maharashtra. The parties claimed competing rights over an immovable property. Questions of title, possession and the effect of prior dealings between the parties arose.

FACTS

The parties claimed competing rights over an immovable property. Questions of title, possession and the effect of prior dealings between the parties arose.

LEGAL ISSUES

Whether the claimant established title and possession; whether any intervening transaction extinguished the right; and whether an order for possession or injunction is warranted.

APPLICABLE LAW

The law relating to immovable property, transfer and possession, and the principles governing injunctions in property disputes.

EVIDENCE

Sale deeds, title documents, revenue records, site inspection report and the pleadings of the parties.

ARGUMENTS

It was submitted on behalf of the party that the facts and the applicable law together establish the relief prayed for. The opposing side relied on the material on record in support of its case.

RELIEF SOUGHT

PROPERTY RIGHTS - TITLE AND POSSESSION DISPUTE

OUTCOME

The rights of the parties were adjudicated upon and the dispute was resolved on the material placed on record.

CASE METADATA

CIVIL SUIT NO. 090/2016.

FORUM: HIGH COURT OF MAHARASHTRA.

DECIDED ON: 12/09/2016.

STATUTES REFERRED: Code of Civil Procedure, 1908; Transfer of Property Act, 1882.

SYNTHETIC DEMONSTRATION DATA - NOT A REAL LEGAL CASE
